

had maintained the patent). The board rejected the opponent's argument that under Art. 114(1) EPC 1973 it had to examine compliance with the requirements of Art. 123(2) and 84 EPC of its own motion. It also did not agree that the new submissions were no more than arguments based on facts already at issue in the proceedings (which, in the board's view, would have been admissible). It found that its refusal to admit the announced new submissions in the case in hand could be based on all criteria for exercising discretion under Art. 13(1) RPBA 2020. It also explained that the criterion of prima facie relevance, which the boards – generally rightly – still considered even though it was not referred to in the provision, could not be decisive here in view of the stage reached in the proceedings and the fact that the new submissions had not been occasioned by any statements made by the patent proprietor in the proceedings before the board or by the board itself.

c) Procedural economy – early and complete presentation of parties' cases

In T 1108/16 the appellant responded to the filing of auxiliary requests by objecting that they extended the scope of protection. The respondent (patent proprietor) did not comment on this objection, taking the view that the appellant had not submitted any new facts. The board found as follows: a party's omitting to carefully analyse the opposing party's written pleadings and preferring to wait for the board's preliminary opinion before responding to an objection was at odds with the function of appeal proceedings, which were aimed at reviewing the contested decision, and with the rule designed to ensure the necessary procedural economy that parties had to present their complete cases at an early stage (Art. 106(1) EPC, R. 99(2) EPC and Art. 12(2) RPBA 2020). The respondent's conduct ran counter to procedural economy and so the board refused to admit the arguments it had submitted only in response to the board's communication.

Whether an objection could have been filed earlier is also a factor to be considered in establishing whether the party concerned has put forward cogent reasons demonstrating exceptional circumstances. On this point, see in particular chapters V.A.4.5.4b) "Causal link between the exceptional circumstances and the late filing", V.A.4.5.6a) "Purpose of the board's preliminary opinion" and V.A.4.5.8c) "No cogent reasons why the objection had not been raised earlier".

d) Procedural economy – no carte blanche to amend claims at wish

In T 1080/15 the independent claims of auxiliary request VII, filed after notification of the summons to oral proceedings, related to an embodiment disclosed in one of the figures and in the description which, however, had never been claimed. The embodiment had not been examined and did not amount to a converging development of the subject-matter claimed in any of the higher-ranked auxiliary requests. The board held that, although an objection raised for the first time by the board could qualify as an exceptional circumstance justifying the admission of a request, it did not give the appellant carte blanche to amend the claims at wish. The amendments should, as a rule, remain within the framework of the embodiments that had been examined by the first-instance department.

5. New submissions on appeal – case law on the RPBA 2007

5.1. Introduction

5.1.1 General rule that RPBA 2020 immediately applicable and exceptions

A revised version of the Rules of Procedure of the Boards of Appeal (RPBA 2020) entered into force on 1 January 2020 and – unless otherwise provided in the transitional provisions in Art. 25 RPBA 2020 – the previously applicable version (RPBA 2007) ceased to be in force from then (Art. 24(1) and (2) RPBA 2020). These transitional provisions provide that the RPBA 2020 apply to any appeal pending on, or filed after, their entry into force on 1 January 2020 (Art. 25(1) RPBA 2020). However, some exceptions to this general rule were made in Art. 25(2) and (3) RPBA 2020.

As explained e.g. in T 2227/15, Art. 25(2) and (3) RPBA 2020 is clearly directed to and limited to two narrow exceptions, i.e. to provisions governing the parties' submissions made either at the outset of the appeal proceedings, which marks the first level of the convergent approach (initial stage), or at an advanced stage of the appeal proceedings, which corresponds to the third level of the convergent approach (ultimate stage) (on the convergent approach under the RPBA 2020, and its three levels in particular, see chapter V.A.4.1.2). Only those provisions which specifically govern the initial stage and the ultimate stage are excluded from an immediate application of the RPBA 2020, leaving the intermediate stage, i.e. the second level of the convergent approach (Art. 13(1) RPBA 2020), to be governed by the general rule (providing for immediate applicability) set out in Art. 25(1) RPBA 2020.

This means that the RPBA 2007 provisions on new submissions have continued to apply – albeit increasingly rarely – as follows: for the initial stage in appeal proceedings, Art. 25(2) RPBA 2020 provides that Art. 12(4) to (6) RPBA 2020 does not apply to any statement of grounds of appeal filed before the date of the entry into force or any reply to it filed in due time; Art. 12(4) RPBA 2007 continues to apply instead in such cases. For the final stage in appeal proceedings, Art. 25(3) RPBA 2020 provides that Art. 13(2) RPBA 2020 does not apply where the summons to oral proceedings or a communication under R. 100(2) EPC was notified before 1 January 2020; Art. 13 RPBA 2007 continues to apply instead in such cases. For more details of the transitional provisions and how they have been interpreted by the boards, see chapters V.A.4.3.2, V.A.4.4.2 and V.A.4.5.2.

The earlier case law on Art. 12(4) and 13 RPBA 2007 remains relevant for another reason too. As pointed out in the preparatory materials and the subsequent case law, the revised provisions on new submissions are partly based on this case law around their forerunners (see the explanatory remarks on Art. 12(4) and (6) RPBA 2020 in CA/3/19, p. 36 and 38, supplementary publication 2, OJ 2020; on Art. 13(1) RPBA 2020, see e.g. T 634/16 and T 700/15, in which it was held that Art. 13(1) RPBA 2020 essentially codified the case law on Art. 13(1) RPBA 2007; see also chapter V.A.4.5.2b). As a result, in decisions applying the RPBA 2020 provisions, the boards also refer to decisions from the time before their entry into force, especially when those provisions (aside from editorial changes) have the

same wording as their RPBA 2007 equivalents (see e.g. T 1439/16 on Art. 15(3) and (6) RPBA 2020).

In view of the above, and because Art. 12 and 13 RPBA 2007 still apply in some cases by virtue of the transitional provisions, the chapters on these articles have been kept in this edition of the book. Nevertheless, the **general rule** since 1 January 2020 is that the RPBA 2020 **apply**, and the related case law is reported in chapter V.A.4. "New submissions on appeal – case law on RPBA 2020."

5.1.2 RPBA 2007 provisions on late-filed submissions

Art. 12 and 13 RPBA 2007 (and Art. 10a and 10b RPBA 2003 before them) were already aimed, in essence, at concentrating the parties' submissions at an early stage of the proceedings, to ensure that the case was as complete as possible when it was processed. In particular, amendments which would have led to an adjournment of the oral proceedings were not to be admitted. Their purpose was therefore to expedite the proceedings and implement the principle of fairness towards the other party or parties. It followed from this that parties to appeal proceedings were subject to certain restrictions as far as their procedural conduct was concerned. For example, it was already each party's own responsibility under Art. 12 and 13 RPBA 2007 to submit all facts, evidence, arguments and requests relevant for the enforcement or defence of their rights as early and completely as possible (T 162/09). When these various principles were enacted in the RPBA 2003 provisions on amendments to a party's case (Art. 10a and 10b RPBA 2003), this essentially codified the boards' already comprehensive case law at the time (on this point, see T 87/05, R 5/11).

Under Art. 12(2) RPBA 2007, the statement of grounds of appeal and the reply had to contain a party's complete case and was expected, inter alia, to specify expressly all the facts, arguments and evidence relied on.

Art. 12(4) RPBA 2007 (which remains applicable in some transitional cases) expressly referred to the boards' power to exclude requests which could have been filed or were not admitted in the first-instance proceedings. It was thus already the case under the RPBA 2007 – like the RPBA 2003 before them – that the boards' decisions were as a rule to be based on the issues in dispute at first instance. This did not rule out the admission of new submissions, but did subject it to the fulfilment of certain criteria to ensure that no entirely "fresh case" was created on appeal (on this point, see also T 356/08, T 1685/07, T 162/09).

Under Art. 13(1) RPBA 2007 (which remains applicable in some transitional cases), the boards had discretion to admit and consider any amendment to a party's case after it had filed its grounds of appeal or reply. This discretion was (and, in those transitional cases, still is) to be exercised in view of, inter alia, the complexity of the new submissions, the state of the proceedings at the time and procedural economy. Those factors were, however, listed only as examples and, as made clear in the case law, other considerations, including well-established criteria relevant to the admissibility issue, could (and can) be taken into account too (R 16/09, R 1/13, T 253/10, T 484/11). Art. 13(3) RPBA 2007 added

that amendments sought to be made after oral proceedings had been arranged were not to be admitted "if they raise issues which the Board or the other party or parties cannot reasonably be expected to deal with without adjournment of the oral proceedings".

5.2. Principles established by the case law on late-filed submissions under the RPBA 2007

5.2.1 Inter partes proceedings

In the context of amendments to parties' cases, several decisions on the RPBA 2007 – and on the RPBA 2020 – refer to the principles developed by the Enlarged Board of Appeal in relation to the inter partes appeal procedure provided for in the EPC, according to which such an appeal primarily serves the parties' right to a review of the first-instance decision in proceedings of a judicial nature (see e.g. T 2102/08, T 2054/10, T 1370/15, T 343/16, T 2117/17, T 482/18). In G 9/91 and G 10/91 (OJ 1993, 408, 420) in particular, it was held that the main purpose of the inter partes appeal procedure is to conduct a final review of the decision given at the previous instance and thereby provide the losing party with an opportunity to challenge the decision against it and obtain a judicial ruling on whether it is correct. The appeal proceedings are thus largely determined by the factual and legal scope of the preceding opposition proceedings.

According to the case law on the RPBA 2007, the parties are subject to certain restrictions on their procedural conduct, given, in particular, the need in inter partes proceedings to act fairly towards the other party and, more generally, the requirements of due process. The parties to inter partes proceedings are subject to a particular duty to facilitate due and swift conduct of the proceedings, which includes submitting all relevant facts, evidence, arguments and requests as early and completely as possible (T 1685/07, T 2102/08, T 253/10, T 1364/12; see also T 369/15, in which the board held that, even if the appellant (opponent) was not legally bound to comment on any auxiliary requests filed, the onus to do so was on it). Admitting subsequent amendments to a party's case must not adversely affect the counterparty's right to submit observations on them (Art. 13(2) RPBA 2007), for example because it cannot duly exercise that right in the time then left (T 253/10, T 1466/12).

5.2.2 Ex parte proceedings

In **ex parte** cases it is established case law that proceedings before the boards of appeal are primarily concerned with examining the contested decision (G 10/93, OJ 1995, 172). Since the judicial examination in ex parte proceedings concerns the stage prior to grant and lacks a contentious nature, the boards are restricted, in their review of the decision under appeal, neither to an examination of the grounds for the contested decision nor to the facts and evidence on which the decision is based (G 10/93). In T 980/08 the board stated that this absence of restriction does not amount to a positive obligation for the boards to consider any request filed in appeal especially when the requests bring about a new case. The appeal proceedings are intended to review the correctness of the decision of the first instance rather than to continue examination by other means (see also

T 65/11 of 21 November 2014, **T 523/13**, **T 675/13**, **T 980/08** is also cited in the context of the **RPBA 2020**, see e.g. **T 340/17**, **T 2179/19**.

5.3. The boards' discretion

Under **Art. 13(1) RPBA 2007** any amendment to a party's submissions after it had filed its statement of grounds of appeal or reply could be admitted and considered at the board's discretion. **Art. 12(4) RPBA 2007** was likewise considered to confer discretion (see e.g. **T 1873/11**).

According to established case law, discretion has to be exercised equitably, i.e. all relevant factors which arise in the particular circumstances of the case have to be considered (see **G 7/93**, OJ 1994, 775; **R 11/11**, **T 931/06**, **T 936/09**, **T 23/10**). In exercising its discretion the board takes account of the circumstances of the specific case, in particular the interests of the parties and the procedural economy of the appeal proceedings, having in mind the purpose of these proceedings (**T 123/08**).

In **T 336/13** the board noted that the issue of discretionary power pertains to the merits of the decision and is part of substantive law (see **R 1/13**). Only an arbitrary or manifestly unlawful exercise of discretion amounts to a fundamental violation of the right to be heard pursuant to **Art. 113 EPC** (see **R 9/11**, **R 10/11**).

5.4. State of proceedings

5.4.1 General

It is the established case law of the boards of appeal that the appeal procedure is designed to ensure that the proceedings are as brief and concentrated as possible and ready for decision at the conclusion of oral proceedings, if scheduled. An important aim of **Art. 12** and **13 RPBA 2007** was – and (where still applicable) is – that the parties' submissions were concentrated at as early a stage as possible so that the case was as complete as possible when it came to processing it (**T 1315/08**, see also **T 727/14**). Therefore, amendments to the claims were to be filed at the earliest possible moment (**T 214/05**, **T 382/05**).

As explained by the board in **T 1488/08**, **Art. 12(2) RPBA 2007** provided a cut-off point after which any further submission was ipso facto late and subject to the discretionary power of the board. The intended overall effect of this article was to require the parties to present a complete case at the outset of the proceedings in order to provide the board with an appeal file containing comprehensive submissions from each party and to prevent procedural tactical abuses. In **T 1744/14** it was noted that merely making general reference to submissions in preceding opposition proceedings could not normally replace an account of the legal and factual reasons supporting a specific objection.

Art. 13 RPBA 2007 left it to the board's discretion to consider amendments made to a party's case after filing of the statement of grounds of appeal. In particular, new